

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Dated Filed:

Plaintiff designates

-----X
KIZZY SMITH,

-----X Bronx County as

the place of trial

The basis of venue is

Place of occurrence

Plaintiff,

SUMMONS

- against -

THE CITY OF NEW YORK and P.O.
RICHARD URBINA (Shield #918429),

Defendants.

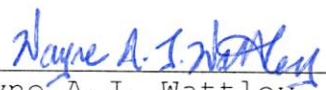
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To the above named Defendants.

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
September 22, 2017

Yours, etc.,

BURNS & HARRIS, ESQS.



Wayne A.J. Wattley, Esq.
Attorneys for Plaintiff
233 Broadway, Suite 900
New York, New York 10279
(212) 393-1000

Defendants' address:

THE CITY OF NEW YORK
100 Church Street
New York, New Yoek 10007

RICHARD URBINA
1 Lefrak City Plaza
Queens, New York 11368

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

KIZZY SMITH,

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK and P.O.
RICHARD URBINA (Shield #918429),

Defendants.

-----X

Plaintiff, by her attorneys BURNS & HARRIS, ESQS as and for a
Verified Complaint herein, respectfully sets forth and alleges:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times herein mentioned, defendant THE CITY OF
NEW YORK, was a municipal corporation duly existing under and by
virtue of the laws of the State of New York.

2. That at all times herein mentioned, defendant THE CITY OF
NEW YORK, was a corporation doing business in the State of New York.

3. That at all times herein mentioned, defendant THE CITY OF
NEW YORK, was the owner of a certain New York City Police Department
2016 Ford motor vehicle bearing New York State license plate number
5462.

4. That at all times herein mentioned, defendant P.O. RICHARD
URBINA (Shield #918429), operated said New York City Police
Department 2016 Ford motor vehicle bearing New York State license

plate number 5462.

5. That at all times herein mentioned, defendant P.O. RICHARD URBINA (Shield #918429), operated said New York City Police Department 2016 Ford motor vehicle bearing New York State license plate number 5462, with the permission and consent, express or implied, of the owner of said motor vehicle.

6. That at all times herein mentioned, defendant P.O. RICHARD URBINA (Shield #918429), operated said New York City Police Department 2016 Ford motor vehicle bearing New York State license plate number 5462, within the course and scope of his employment.

7. That at all times herein mentioned, defendant P.O. RICHARD URBINA (Shield #918429), operated New York City Police Department 2016 Ford motor vehicle bearing New York State license plate number 5462, within the course and scope of his employment for the defendant THE CITY OF NEW YORK.

8. That at all times herein mentioned, defendant THE CITY OF NEW YORK, its servants, agents and/or employees maintained said New York City Police Department 2016 Ford motor vehicle bearing New York State license plate number 5462.

9. That at all times herein mentioned, defendant THE CITY OF NEW YORK, its servants, agents and/or employees managed said New York City Police Department 2016 Ford motor vehicle bearing New York State

license plate number 5462.

10. That at all times herein mentioned, defendant THE CITY OF NEW YORK, its servants, agents and/or employees controlled said New York City Police Department 2016 Ford motor vehicle bearing New York State license plate number 5462.

11. That at all times herein mentioned, defendant P.O. RICHARD URBINA (Shield #918429), maintained said New York City Police Department 2016 Ford motor vehicle bearing New York State license plate number 5462.

12. That at all times herein mentioned, defendant P.O. RICHARD URBINA (Shield #918429), managed said New York City Police Department 2016 Ford motor vehicle bearing New York State license plate number 5462.

13. That at all times herein mentioned, defendant P.O. RICHARD URBINA (Shield #918429), controlled said New York City Police Department 2016 Ford motor vehicle bearing New York State license plate number 5462.

14. That at all times herein mentioned, the roadways and thoroughfares known as Southern Boulevard and East Tremont Avenue, in the County of Bronx, City and State of New York, were public roadways and thoroughfares in common use by the residents of the State of New York, and others.

15. That at all times herein mentioned, the plaintiff KIZZY SMITH, was operating a certain motor vehicle bearing New Jersey registration #E63HDV for the year 2016.

16. That on the 24th day of December 2016, defendant P.O. RICHARD URBINA (Shield #918429) was operating said motor vehicle over and along the public roadways located in the vicinity of Southern Boulevard and East Tremont Avenue, in the County of Bronx, City and State of New York.

17. That on the 24th day of December 2016, plaintiff KIZZY SMITH was operating her motor vehicle over and along the public roadways located in the vicinity of Southern Boulevard and East Tremont Avenue, in the County of Bronx, City and State of New York.

18. That on the 24th day of December 2016, the motor vehicle owned and operated by defendants came into contact with the motor vehicle of the owned and operated by plaintiff.

19. That on the 24th day of December 2016, the motor vehicle owned and operated by the defendants came into contact with the motor vehicle of the plaintiff at/or near the intersection of Southern Boulevard and East Tremont Avenue, in the County of Bronx, City and State of New York.

20. That at all times herein mentioned, defendant THE CITY OF NEW YORK, owned a certain police department in conjunction with its

municipal functions.

21. That at all times herein mentioned, defendant THE CITY OF NEW YORK, hired, employed and/or furnished police officers to act as servants, agents, employees and/or representatives of the defendant THE CITY OF NEW YORK.

22. That at all times herein mentioned, it was the duty of the defendants to provide and equip and/or ensure that New York City Police Department motor vehicles, including the 2016 Ford bearing New York State license plate number 5462 involved in this accident, was equipped with necessary, required and appropriate emergency and/or warning equipment, horns, sirens, lights, apparatus and/or devices.

23. That at all times herein mentioned, it was the duty of the defendants to maintain and/or ensure that said New York City Police Department motor vehicles, including the 2016 Ford bearing New York State license plate number 5462 involved in this accident, its emergency and/or warning equipment, horns, sirens, lights, apparatus and/or devices, were maintained in reasonably safe and suitable condition and repair.

24. That at all times herein mentioned, it was the duty of the defendants to ensure the proper, appropriate and required use and operation of emergency and/or warning equipment, horns, sirens,

lights, apparatus and/or devices of said motor vehicles, including the 2016 Ford bearing New York State license plate number 5462 involved in this accident.

25. That at all times herein mentioned, it was the duty of the defendants to ensure the proper, appropriate and required use and operation of emergency and/or warning equipment, horns, sirens, lights, apparatus and/or devices of said motor vehicles, including the 2016 Ford bearing New York State license plate number 5462 involved in this accident, during high speed police department motor vehicle operations.

26. That at all times herein mentioned, it was the duty of the defendants to ensure the proper, appropriate and required observation of and compliance with traffic signs, lights and devices during high speed police department motor vehicle operations upon the public streets and roadways.

27. That at all times herein mentioned, it was the duty of the defendants to properly and adequately follow, promulgate, enforce, instruct and direct police officers and/or personnel in the proper, appropriate and required use and operation of emergency and/or warning equipment, horns, sirens, lights, apparatus and/or devices of said motor vehicles, including the 2016 Ford bearing New York State license plate number 5462 involved in this accident.

28. That at all times herein mentioned, it was the duty of the defendants to properly and adequately follow, promulgate, enforce, instruct and direct police officers and/or personnel in the proper, appropriate and required care, precautions and conduct to be exercised during police department motor vehicle operations.

29. That at all times herein mentioned, it was the duty of the defendants to properly and adequately follow, promulgate, enforce, instruct and direct police officers and/or personnel in the proper, appropriate and required care, precautions and conduct to be exercised during high speed police department motor vehicle operations.

30. That at all times herein mentioned, it was the duty of the defendants to properly and adequately follow, promulgate, enforce, instruct and direct police officers and/or personnel in the proper, appropriate and required use and operation of emergency and/or warning equipment, horns, sirens, lights, apparatus and/or devices during police department motor vehicle operations.

31. That at all times herein mentioned, it was the duty of the defendants to properly and adequately follow, promulgate, enforce, instruct and direct police officers and/or personnel in the proper, appropriate and required use and operation of emergency and/or warning equipment, horns, sirens, lights, apparatus and/or devices

during high speed police department motor vehicle operations.

32. That on the 24th day of December 2016, defendant, P.O. RICHARD URBINA (Shield #918429) was operating said New York City Police Department 2016 Ford motor vehicle bearing New York State license plate number 5462, over and along the public roadways located in the vicinity of in the County of Bronx, City and State of New York, during the regular course of high speed police department operations.

33. That on the 24th day of December 2016, said New York City Police Department 2016 Ford motor vehicle bearing New York State license plate number 5462 was being utilized in a careless, reckless, dangerous and negligent high speed police department over and along the public roadways.

34. That at all times herein mentioned, defendants failed to provide and equip and/or ensure that said New York City Police Department 2016 Ford motor vehicle bearing New York State license plate number 5462, was equipped with necessary, required and appropriate emergency and/or warning equipment, horns, sirens, lights, apparatus and/or devices.

35. That at all times herein mentioned, defendants failed to maintain and/or ensure that said New York City Police Department 2016 Ford motor vehicle bearing New York State license plate number 5462, its emergency and/or warning equipment, horns, sirens, lights,

apparatus and/or devices, were maintained in reasonably safe and suitable condition and repair.

36. That at all times herein mentioned, defendants failed to ensure the proper, appropriate and required use and operation of emergency and/or warning equipment, horns, sirens, lights, apparatus and/or devices of said New York City Police Department 2016 Ford motor vehicle bearing New York State license plate number 5462.

37. That at all times herein mentioned, defendants failed to ensure the proper, appropriate and required use and operation of emergency and/or warning equipment, horns, sirens, lights, apparatus and/or devices of said New York City Police Department 2016 Ford motor vehicle bearing New York State license plate number 5462, during high speed police department motor vehicle operations.

38. That at all times herein mentioned, defendants failed to properly and adequately follow, promulgate, enforce, instruct and direct police officers and/or personnel in the proper, appropriate and required use and operation of emergency and/or warning equipment, horns, sirens, lights, apparatus and/or devices of said motor vehicle.

39. That at all times herein mentioned, defendants failed to properly and adequately follow, promulgate, enforce, instruct and direct police officers and/or personnel in the proper, appropriate

and required care, precautions and conduct to be exercised during police department motor vehicle operations.

40. That at all times herein mentioned, defendants failed to properly and adequately follow, promulgate, enforce, instruct and direct police officers and/or personnel in the proper, appropriate and required care, precautions and conduct to be exercised during high speed police department motor vehicle operations.

41. That at all times herein mentioned, defendants failed to properly and adequately follow, promulgate, enforce, instruct and direct police officers and/or personnel in the proper, appropriate and required use and operation of emergency and/or warning equipment, horns, sirens, lights, apparatus and/or devices during police department motor vehicle operations.

42. That at all times herein mentioned, defendants failed to properly and adequately follow, promulgate, enforce, instruct and direct police officers and/or personnel in the proper, appropriate and required use and operation of emergency and/or warning equipment, horns, sirens, lights, apparatus and/or devices during high speed police department motor vehicle operations.

43. That at all times herein mentioned, defendants conducted and persisted in the said high speed police department motor vehicle operation in gross, reckless, wanton and malicious disregard for the

safety, protection and well-being of other motorists and pedestrians, including the plaintiff.

44. That at all times herein mentioned, defendants conducted and persisted in the said high speed police department motor vehicle operation and disregarded traffic signs, lights and devices in gross, reckless, wanton and malicious disregard for the safety, protection and well-being of other motorists and including the motor vehicle being operated by the plaintiff.

45. That at all times herein mentioned, defendants conducted and persisted in the said high speed police department motor vehicle operation and disregard of traffic signs, lights and devices in gross, reckless, wanton and malicious disregard for the safety, protection and well-being of other motorists, in egregious violation of their police department rules, regulations, manuals and procedures.

46. That at all times herein mentioned, the motor vehicle owned and operated by the defendants was operated in gross, reckless, wanton and malicious disregard for the safety, protection and well-being of other motorists, including the plaintiff's said motor vehicle.

47. That by reason of the foregoing, plaintiff KIZZY SMITH was injured.

48. That the foregoing accident and the resulting injuries to plaintiff KIZZY SMITH were caused solely by reason of the carelessness, negligence, wanton and willful disregard on the part of the defendants, and without any negligence on the part of the plaintiff contributing thereto.

49. That by reason of the foregoing, plaintiff KIZZY SMITH was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and/or in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to plaintiff's great damage.

50. That as a result of the foregoing, plaintiff KIZZY SMITH suffered a serious injury as defined by Section 5102(d) of the Insurance Law of the State of New York.

51. That plaintiff is a 'covered person' as defined by Section

5102(j) of the Insurance Law of the State of New York.

52. That by reason thereof, plaintiff is entitled to recover for non-economic loss and for such economic losses as are not included within the definition of 'basic economic loss' as set forth in Section 5102(a) of the Insurance Law of the State of New York.

53. That by reason thereof, plaintiff is entitled to recover for non-economic loss and for all economic losses sustained.

54. That this action falls within one or more of the exceptions set forth in C.P.L.R 1602.

55. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.

56. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

57. Pursuant to CPLR Section 1602(6), defendants are jointly and severally liable for all of plaintiff's damages, including but

not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants should be held liable by reason of defendants' use, ownership or operation of a motor vehicle.

58. Pursuant to CPLR Section 1602(2)(iv), the defendant owner is jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that said defendant is vicariously liable for the negligent acts and omissions of the defendant operator of said vehicle.

59. That heretofore, and on/or about March 9, 2017 and within 90 days after the claim served upon arose, plaintiff KIZZY SMITH caused a Notice of Claim, in writing, sworn to by the plaintiff containing the name and post office address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendant THE CITY OF NEW YORK, by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

60. That more than thirty (30) days have elapsed since the

aforesaid Notice of Claim was served on the said defendant.

61. That the said defendant was negligent and has refused and neglected to adjust, settle and pay the same.

62. That this claim has been commenced and this action has been started within one year and ninety days after the happening of the event upon which the claim is based.

63. That all conditions and requirements precedent to the commencement of this action have been complied with.

64. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein.

AS AND FOR A SECOND CAUSE OF ACTION

65. That plaintiff repeats, reiterates and re-alleges each and every allegation as contained in the First Cause of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

66. That at all times herein mentioned, it was the duty of the defendant THE CITY OF NEW YORK its servants, agents and/or employees to select and screen for hiring for retention or discharge as employees operating police department motor vehicles, those who are not fit, suitable, properly trained and instructed, constituting a potential menace, hazard or danger to the public or otherwise, those

with unsuitable propensities and those with emotional, physical, psychological and/or physiological traits or characteristics or unsuitable or unstable or contraindicated for such employment.

67. That at all times herein mentioned, it was the duty of the said defendant, its servants, agents and/or employees to train, discipline, supervise, promulgate and put into effect appropriate rules applicable to the duties, activities and behaviors of their servants, agents, employees and/or personnel operating such motor vehicles in the course and scope of employment for said defendants.

68. That by reason of the negligence and lack of supervision of the said defendant, its servants, agents and/or employees in hiring, monitoring and retention of said defendant employee with knowledge of the unsuitable, incompetence and unfitness to act and serve and unfitness to continue to act and serve as employees operating said vehicles by reason of the defendants' breach of duties, the plaintiff was caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiff in any way contributing thereto, thereby causing plaintiff extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

69. That by reason of the foregoing, plaintiff has been damaged

in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A THIRD CAUSE OF ACTION

70. That plaintiff repeats, reiterates and re-alleges each and every allegation as contained in the First and Second Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

71. That at all times herein mentioned, it was the duty of defendant THE CITY OF NEW YORK, its servants, agents and/or employees to supervise and entrust the use of their motor vehicles to suitable, competent, qualified, experienced, trained, diligent and adequate persons.

72. That at all times herein mentioned, it was the duty of said defendant, its servants, agents and/or employees to properly and adequately supervise and ensure that their said motor vehicle were entrusted, for use and operation as a vehicle, to persons who were fit, suitable, properly trained and instructed.

73. That at all times herein mentioned, it was the duty of said defendant, its servants, agents and/or employees to properly and adequately supervise and ensure that their said motor vehicles were not entrusted, for use and operation as a vehicle, to persons who

constituted a potential menace, hazard or danger to the public or otherwise, those with unsuitable propensities and those with emotional, physical, psychological and/or physiological traits or characteristics or unsuitable or unstable or contraindicated to safely operate such vehicles.

74. That by reason of the negligence of said defendant, its servants, agents and/or employees in negligently supervising and entrusting said motor vehicles to said operator, plaintiff KIZZY SMITH was caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiff in any way contributing thereto, thereby causing plaintiff extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

75. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

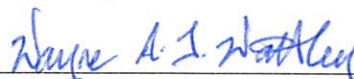
WHEREFORE, plaintiff KIZZY SMITH demands judgment against the defendants in amounts which exceed the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction, in amounts to be determined upon the trial of this action, together with the costs and disbursements of this action,

and with interest from the date of this accident.

Dated: New York, New York
September 22, 2017

Yours, etc.,

BURNS & HARRIS, ESQS.
Attorneys for Plaintiff



By: Wayne A.J. Wattley
233 Broadway, Suite 900
New York, New York 10027
(212) 393-1000

ATTORNEY VERIFICATION

WAYNE A.J. WATTLEY, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

I am the attorney for the plaintiffs in the within action and have read the foregoing COMPLAINT and know the contents thereof; the same is true upon information and belief.

This verification is made by this affirmant and not by said plaintiffs because said plaintiffs reside(s) in a County other than the County wherein your affirmant maintains his office.

The grounds of affirmant's knowledge and belief are as follows: Conference with clients and notes and records contained in the file maintained in the regular course of business.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
September 22, 2017



WAYNE A.J. WATTLEY, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

KIZZY SMITH,

Plaintiff,

-againts-

THE CITY OF NEW YORK and P.O. RICHARD
URBINA (Shield #918429),

Defendants.

-----X

SUMMONS AND VERIFIED COMPLAINT

BURNS & HARRIS
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